

# THE STRESSOR OVERLAY – THE POSITION, THE THREE STRESSORS, AND THE ADMITTED FACTS

WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator.

**Black** is the text of a fact the Respondent admitted on 8 September 2026 in answer to the notice to admit facts served 28 August 2026, word for word and in full, with its number on that notice in brackets. Admissions are for this proceeding only, under rule 49 of the Industrial Relations (Tribunals) Rules 2011. **Blue** is the same, where the fact is the text of the role description for the position; it is placed at each point where the duty bears on what follows; where a duty bears at more than one point, the same paragraph is placed again. **Red is material still to be admitted, carried here so the gap is visible, with its status in square brackets beneath it.** Headings and dates are navigation only and are not evidence. No word of the Appellant's own account appears in this document.

## THE POSITION

### The role description, and the shift arrangement recorded for the position

**THE POSITION — [1]** In 2026 Metro South Hospital and Health Service provided to the Appellant a role description for the position of Administration Officer, Switchboard Services, Logan Hospital, which states the classification as "A03".

**THE POSITION — [2]** That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week".

**THE POSITION — [3]** That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital".

**THE POSITION — [4]** That role description names the contact for the position as "Chloe Taylor".

**THE POSITION — [5]** That role description states, as a key responsibility: "Maintain call queues to minimum at all times".

**THE POSITION — [6]** That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate".

**THE POSITION — [7]** That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information".

**THE POSITION — [8]** That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes".

**THE POSITION — [9]** That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined".

**THE POSITION — [10]** That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned".

**THE POSITION — [11]** That role description states, as a key responsibility: "Ability to work effectively as an individual with limited supervision to meet deadlines and establish work priorities, and work as a member of a multi-disciplinary team in a changing environment".

**THE POSITION — [12]** That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces".

**THE POSITION — [13]** That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period".

**[14]** Metro South Hospital and Health Service approved three movement forms recording changes to the Appellant's working hours, dated 27 February 2026, 17 April 2026 and 9 June 2026, each approved by Mr Scott Hughes as delegate.

**[15]** Each of those three movement forms records the Appellant's shift arrangements as "Continuous Shift Worker".

**[16]** The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant ceased to be a continuous shift worker at any time before 18 June 2024.

## STRESSOR 1 – THE CONDITIONS OF THE WORK, AND WHAT FOLLOWED WHAT WAS RAISED

### 1(a) The directory, and the means of correcting it

**THE POSITION — [6]** That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate".

**THE POSITION — [7]** That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information".

**[39]** On 18 July 2023 at 12:56 pm Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, sent an email to the Appellant and the Switchboard team, subject "Hello & Update", which states: "My current role is a project role for the Switchboard team. It is a temporary position that predominantly focuses on fixing up the database that switchboard utilises."

**[40]** That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database."

**[41]** That email states that Ms Stibbard's working hours were "every Tuesday and second Monday, 8:00 - 16:00".

**[42]** That email states that a person wanting an entry updated was to "contact me directly, either via email or extension".

**[43]** That email states that if an entry was needed on a day Ms Stibbard was not present and was urgent, it was to be sent to Ms Taylor.

**[44]** That email states that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back".

**[45]** That email states: "I have also removed the Contact & Number Changes book out of the room, as I would prefer, for now, to be sent all changes to my email."

**[46]** Review Decision 69983 records: "Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, emailed the staff members on 18 July 2023 to provide an update with respect to her role."

**[47]** That decision records: "She explained her role was a project role, which was a temporary position that focused on fixing the database used by the switchboard."

**[48]** That decision records: "She informed that while she fixed it, she would be removing everyone's access to it, and asked for anyone who needed to amend, add or remove entries, to directly contact her or Ms Taylor."

**[54]** Review Decision 69983 records: "On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry."

[55] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024.

#### 1(b) The after-hours arrangement, and how the manager was to be reached

**THE POSITION — [3]** That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital".

**THE POSITION — [4]** That role description names the contact for the position as "Chloe Taylor".

[49] On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard".

[50] That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised."

[51] That email states: "This new process is effective from today."

[52] That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours."

[53] Ms Taylor signed that email as "A/Switchboard Manager".

[273] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024.

[111] On 13 May 2024 at 4:29 pm Ms Ellen Stibbard sent an email to the Switchboard team, subject "Switchboard After Hours On Call Manager PP24 13/5/24 - 26/5/24", which states: "Just advising you that I am on call after hours for Switch from today Monday 13/5/24 – Sunday 19/5/24. Chloe will then be on call from Monday 20/5/24 – Sunday 26/5/24. During business hours you are to still contact Chloe."

[112] Ms Stibbard's on-call roster email of 13 May 2024 was addressed to the Switchboard team and included Mr Richard Parry among its recipients.

[113] Ms Taylor's email of 17 May 2024 at 9:30 am headed "Switchboard Manager - On call and Hours." included Mr Richard Parry among its recipients.

[162] On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and speak to me directly if its regarding emergent leave, you can contact me either through switch or my office/mobile."

[163] The email of Ms Taylor of 15 April 2024 states that during office hours the Appellant was to contact her "through switch/office or mobile".

[164] The email of Ms Taylor of 14 May 2024 at 12:08 pm states that the Appellant could contact her "either through switch or my office/mobile".

[165] Each of those two emails identifies the Switchboard as a means by which the Appellant could contact Ms Taylor.

[166] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 14 May 2024, that notifying his unavailability by telephoning the Switchboard did not comply with the process required of him.

#### 1(c) The emergency notifications, 2 to 9 May 2024

**THE POSITION — [8]** That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes".

**THE POSITION — [5]** That role description states, as a key responsibility: "Maintain call queues to minimum at all times".

**THE POSITION — [10]** That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned".

[56] On 3 May 2024 at 3:06 pm Vivian Kwok, MASPER Registrar, sent an email to Ms Taylor, copied to Dr Pan Jane Wong, with the subject "Switchboard issues 2nd and 3rd May 2024", which states: "I've been requested to email you with the list of switchboard issues from yesterday and today".

[57] That email lists five occasions on 2 and 3 May 2024, being 2 May 2024 at 14:47, and 3 May 2024 at 10:00 am, 10:22 am, 11:43 am and 14:46.

[58] That email records of the occasion at 14:46 on 3 May 2024: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER".

[59] On 8 May 2024 at 5:28 pm Vivian Kwok sent a further email to Ms Taylor, copied to Dr Wong, with the subject "Re: Switchboard issues 5 May, 7 May, and 8 May", which states: "Here are the switchboard issues 5th May to 8th of May".

[60] That further email lists four occasions, being 5 May 2024 at 14:45, 7 May 2024 at 0745, and 8 May 2024 at 8:53 am and 9:59 am.

[61] That further email records of the occasions on 8 May 2024 that a call was "incorrectly put through to MASPER" on each occasion.

[62] The email of Vivian Kwok of 8 May 2024 was sent on the fifth calendar day after her email of 3 May 2024.

[63] The email of Ms Taylor of 9 May 2024 at 9:20 am was sent on the sixth calendar day after the email of Vivian Kwok of 3 May 2024 at 3:06 pm.

[64] The interval between the email of Vivian Kwok of 3 May 2024 at 3:06 pm and the email of Ms Taylor of 9 May 2024 at 9:20 am is five days, eighteen hours and fourteen minutes.

[65] On 9 May 2024 at 9:20 am Ms Taylor sent an email to Vivian Kwok, MASPER Registrar, and Dr Pan Jane Wong, subject "RE: Switchboard issues 5 May, 7 May, and 8 May", which states: "@Pan Jane Wong Can I please confirm your business hours so we can have this for our reference, it is not provided on the rosters. I have noticed your dect phone number #5997 is currently switched off."

[66] On 9 May 2024 at 10:15 am Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, subject "MASPER process", directing that "all calls that switch transfer to the MASPER phone #5223 are being introduced".

[67] Ms Taylor's email to Logan Switch of 9 May 2024 at 10:15 am states: "I have included below email trail for your reference. There have been many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams."

[68] The occasions reported by Vivian Kwok on 3 and 8 May 2024 occurred while the after-hours on-call arrangement notified by Ms Taylor on 15 April 2024 was in force.

[69] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any communication was sent to Logan Switch or to the Switchboard staff concerning the occasions reported by Vivian Kwok at any time after 3 May 2024 and before 10:15 am on 9 May 2024.

#### 1(d) The Integrated Respiratory Service, and the recommendation of 20 May 2024

**THE POSITION — [9]** That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined".

[89] On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area."

[90] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at any time before 20 May 2024.

[91] On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues."

[92] The email of Ms Marriott of 20 May 2024 at 11:03 am was sent on the fifth calendar day after her email of 15 May 2024 at 11:47 am.

[93] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 20 May 2024 at 11:03 am before 2:05 pm on that day.

[94] On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document."

[95] That email of the Appellant was sent from the Logan Switch account.

[96] That email of the Appellant was sent within the office hours Ms Taylor had stated to all Switchboard staff on 17 May 2024.

[97] The Appellant's email of 20 May 2024 at 2:05 pm was sent three hours and two minutes after the email of Ms Marriott of that day at 11:03 am.

[98] The Appellant's email of 20 May 2024 at 2:05 pm was sent five days, two hours and eighteen minutes after the first email of Ms Marriott of 15 May 2024 at 11:47 am.

[99] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was rostered to work after 2:05 pm on 20 May 2024.

[100] On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical."

[101] That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing."

[102] Ms Taylor's reply of 20 May 2024 at 4:30 pm was sent two hours and twenty-five minutes after the Appellant's email of that day at 2:05 pm.

[103] That reply of Ms Taylor was sent two hours after the conclusion of the office hours she had stated to all Switchboard staff on 17 May 2024.

[104] Ms Taylor's reply of 20 May 2024 at 4:30 pm states that the matter had been discussed "this morning", being the morning of 20 May 2024.

[105] The Respondent's amended List of Documents dated 14 August 2026 does not list any document created on 20 May 2024 recording the discussion referred to in that reply.

[106] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.

[107] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.

[108] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Mr Parry communicated with Ms Marriott, or with the Integrated Respiratory Service, on 20 May 2024.

[109] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the document "Outpatients Department - Clinic contact Details" was amended at any time on or before 20 May 2024.

[110] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Switchboard staff were notified, at any time on or before 20 May 2024, of the modifications made to the document "Outpatients Department - Clinic contact Details" on 22 February 2024.

#### 1(e) The hours of the manager to whom the position reports

**THE POSITION — [3]** That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital".

**THE POSITION — [4]** That role description names the contact for the position as "Chloe Taylor".

[70] Review Decision 69983 records that in an email dated 23 August 2023 Ms Taylor "noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm".

[71] On 23 August 2023 at 2:18 pm Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, with the subject "What's Chloe's Hours?!", which states: "I am fulltime and work flex hours - You may have noticed recently I am starting at different times in the morning and finish at different times in the afternoon."

[72] That email states: "My hours would range from starting between 6-9am and finishing 2-5pm."

[73] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor stated fixed office hours to the Switchboard staff at any time between 23 August 2023 and 17 May 2024.

[74] On 15 May 2024 at 1:15 pm the Appellant sent an email to Ms Taylor and Logan Switch, copied to Switchboard staff, Ms Reese and LBH\_HR, with the subject "Office Hours and Departmental Directives", which states: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times".

[75] That email of the Appellant states: "please ensure that any directives and changes within the department is made in consultation with the team to ensure that any concerns can be appropriately addressed."

[76] On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct".

[77] That reply of Ms Reese asked the Appellant to retract his email.

[78] On 15 May 2024 at 7:09 pm the Appellant replied to Ms Reese stating: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours."

[79] On 21 May 2024 at 2:53 pm Ms Reese replied to the Appellant stating: "With regards to your concerns about having more clarity as to what are Chole's business hours I will follow up on the issues raised."

[80] That reply of Ms Reese states: "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?"

[81] On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff, with the subject "Switchboard Manager - On call and Hours.", which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile."

- [82] That email states that Ms Taylor's office hours "can vary", and states: "I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30."
- [83] That email of 17 May 2024 at 9:30 am states: "I will not be in the office until around 11am on Monday 20.05.2024".
- [84] That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week."
- [85] On 18 June 2024 at 8:58 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and Ms Stibbard, with the subject "Good morning Team.", which states: "I am taking today off, and hopefully will be back tomorrow."
- [86] That email of 18 June 2024 states: "I am sorry I haven't been there for you all over the past week."
- [87] That email of 18 June 2024 states: "Ellen will not be in today, however Tammy is in the office if anything urgent."
- [88] The office hours stated by Ms Taylor in her email of 17 May 2024 at 9:30 am concluded at 2:30 pm.

#### 1(f) The Communication Book

- THE POSITION — [9]** That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined".
- THE POSITION — [12]** That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces".
- [143] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 12(a): "admits that the Ms Taylor [sic] did remove pages from the Communication Book on or around 6 June 2023".
- [144] That amended statement of facts and contentions states at paragraph 12(b): "says this event was reported from Ms Taylor to Ms Reese on 6 June 2023 via email".
- [145] On 6 June 2023 at 4:05 pm Ms Taylor sent an email to Ms Reese with the subject "Fwd: Communication Book Update".
- [146] That email states: "I was not aware of who put this entry in at the time but I took it out last week as it was clearly an indirect dig at the team and there is already a procedure to follow with this certain entry."
- [147] That email states: "I just feel like it's being used as a 'burn book' more than a professional tool that switchboard can use to communicate."
- [148] Beneath it in the same document is Ms Taylor's email to Logan Switch of 6 June 2023 at 9:57 am, subject "Communication Book Update", copied to Switchboard staff including the Appellant.
- [149] That email of 9:57 am states: "This is not used to simply put your point across or make any indirect comments towards the team."
- [150] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the entry Ms Taylor removed from the Communication Book, or its author.
- [151] That amended statement of facts and contentions, as presently constituted, does not allege that the removed page has been located, or that any copy of it exists.
- [152] That amended statement of facts and contentions, as presently constituted, does not allege that any entry made by the Appellant remains in the Communication Book.
- [153] That amended statement of facts and contentions, as presently constituted, does not allege that the Communication Book ceased to be in the possession of Metro South Hospital and Health Service at any time during the Appellant's employment.
- [154] *The Respondent's amended List of Documents dated 14 August 2026 does not list the Communication Book, nor any page or entry from it.*
- [NOT ADMITTED — and not pressed. Item 37 of the Respondent's amended List of Documents holds a photograph of the Communication Book.]*

#### 1(g) The hours sought, and the matters raised in August and September 2023

- [26] On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight."
- [27] That email sets out clause 11.7 of the applicable agreement, headed "Additional Permanent Hours for Part-time Employees".
- [28] On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "With regards to an additional shift to replace the shift you did not work Monday due to a rostering error I believe Chloe offered you the shift tomorrow Wednesday 9th 0700-1500, thus can I ask if you are interested in picking up that shift? I believe you will then have 8 shifts this fortnight if you were to pick up that shift, thus can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?"
- [29] On 8 August 2023 at 6:06 pm the Appellant sent an email to Ms Reese which states: "I can confirm that I will be in tomorrow 0700-1500 9th August. I was also looking to pick up another shift if possible."
- [30] On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster".
- [31] That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster and advocacy to become a union representative for the switchboard department."
- [32] That application of 31 August 2023 records the Appellant's intention to become the Switchboard union delegate, in the same sentence as his willingness to take on additional night shifts.
- [33] On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability."
- [34] That email states: "I have no issues with shift work."
- [35] That email attached a draft roster spreadsheet prepared by the Appellant.
- [36] On 8 September 2023 at 11:42 am Ms Reese sent an email to the Appellant which states: "I am glad to hear things seem to be going well with Chloe and I am also glad to hear you applied for the additional shifts through the recent EOI."
- [37] On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved."
- [38] That email states: "happy to commence Full-time hours from the 16th October 2023".
- [155] The Appellant's email of 7 August 2023 at 12:21 pm states: "Please give me some space and stop with any further communication as I have had enough of it."
- [156] On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an oversight."
- [157] That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period".

[158] On 7 August 2023 at 3:13 pm Ms Reese replied to the Appellant stating: "As Chloe is your current line manager and as such you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc."

[159] On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent communication with Cory about contacting yourself about missed shifts, as I could not find a copy of this email."

[160] On 29 August 2023 at 6:57 pm Ms Reese sent the Appellant an email attaching HR Policy E12 - Individual Employee Grievances, and setting out how a grievance could be submitted.

[161] On 4 September 2023 the Appellant replied to Ms Reese stating: "I have also spoken to Chloe. We are seemingly on the path to working in a beneficial way and hopefully will not need to go through this process."

#### **1(h) The special pandemic leave application of February 2024**

[114] The myHR leave request history for Process Reference 15480560 records: "Employee - Cory Shepherd : created draft", 20.02.2024, 11:24:48.

[115] That history records: "Employee - Cory Shepherd : submitted request", 20.02.2024, 11:41:27.

[116] That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 21.02.2024, 12:23:43.

[117] That history records: "Employee - Cory Shepherd : submitted request", 28.02.2024, 06:07:32.

[118] That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 29.02.2024, 09:06:07.

[119] That history records: "Employee - Cory Shepherd : submitted request", 29.02.2024, 11:07:28.

[120] That history records: "Reviewer - Chloe Donovan-Taylor : approved request", 29.02.2024, 11:21:03.

[121] That history records: "Manager - Tammy Reese : approved request", 01.03.2024, 16:05:08.

[122] That history records the Appellant as having submitted the request on three occasions.

[123] That history records Ms Taylor as having declined the request on two occasions.

[124] The interval between the submission recorded at 11:07:28 on 29 February 2024 and the approval recorded at 11:21:03 on the same day is thirteen minutes and thirty-five seconds.

[125] The interval between the draft recorded at 11:24:48 on 20 February 2024 and the approval recorded at 16:05:08 on 1 March 2024 is ten days, four hours and forty minutes.

[126] In that history Ms Taylor is identified as "Reviewer" and Ms Reese is identified as "Manager".

[127] The Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms Noelle Cridland as A/Health Service Chief Executive on 23 November 2022 and effective as at 5 December 2022, sub-delegates "the power to approve/not approve paid Special Pandemic Leave in accordance with Directives 05/17 and 01/20 respectively, for this pandemic event (COVID-19) only, to a Band 9 delegate".

[128] That Instrument states: "This Instrument does not permit the further sub-delegation of the powers outlined in (a) above."

[129] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was a Band 9 delegate at any time in February 2024.

[130] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Reese was a Band 9 delegate at any time in February or March 2024.

[131] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the person who exercised the power sub-delegated by the Instrument of Human Resource Sub-Delegation in respect of Process Reference 15480560.

[132] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 14(c): "Ms Taylor asked the appellant to submit a Special Pandemic Leave request via MyHR and attach a statutory declaration or photo evidence of his test".

[133] That amended statement of facts and contentions states at paragraph 14(d): "Ms Taylor did decline the application because on her assessment, the required statutory declaration was not attached to the MyHR submission. Ms Taylor asked the appellant to resubmit".

[134] That amended statement of facts and contentions states at paragraph 14(e): "says that a review indicates that in fact, the attachments were present on the appellant's submission".

[135] That amended statement of facts and contentions states at paragraph 14(f): "says this was a matter of human error by Ms Taylor on the background of high work demands surrounding the management of staff with COVID-19".

[136] Review Decision 69983 records that on 20 February 2024 the Appellant messaged Ms Taylor stating he had tested positive for Covid, and that Ms Taylor "requested that you send it to her so she could submit it in MyHR".

[137] Review Decision 69983 records: "On 21 February 2024 Ms Taylor then messaged you and informed she had to decline your request in MyHR because the minimum period for Covid leave was 5 days for a positive staff member."

[138] That decision records that Ms Taylor "noted the statutory declaration you provided was sufficient evidence" and "requested for you to resubmit your leave days".

[139] That decision records that the Appellant "messaged you were confused about why your amended leave request was declined" and "noted you did everything as required".

[140] The myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure records a Smart Leave Request with process number 15480560, submitted on 20 February 2024, with an effective date of 20 February 2024, a processing date of 1 March 2024, and a status of "Completed".

[141] That report records the initiator of that Smart Leave Request as the Appellant.

[142] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any other Switchboard employee was required to submit a Special Pandemic Leave request personally through myHR in February 2024.

#### **1(i) The union delegate, and the consultation on rosters**

[167] The Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, December 2024, states: "In accordance with Clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015, agreement between MSH and the union, or MSH and the majority of employees affected must occur prior to changes to a shift roster."

[168] That document states: "Agreement is defined as obtaining consent from the majority (50+1%) of affected employees, with all affected employees invited to cast their vote via an online Ballot Form."

[169] The Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital states: "On 22 July 2021, Metro South Health (MSH) management, affected staff and Together Queensland representatives commenced negotiating a new roster for Switchboard Services, Logan Hospital."

[170] That Consultation Paper states: "In August 2024, Switchboard Services, Logan Hospital was realigned from Health Information Management Services (HIMS), MSH to Corporate Services, LBHS, MSH."

[171] That Consultation Paper states that the proposed roster "is intended to introduce a more equitable roster for Switchboard Services, Logan Hospital staff".

[172] That Consultation Paper states that the proposed roster includes: "Redistribution of nights for greater equity based on FTE."

[173] That Consultation Paper states that the proposed roster includes: "Rotational roster for predictability and equity to all staff ensuring fair distribution of penalties."

[174] That Consultation Paper states that the proposed roster includes: "An additional eight (8) hour shift (0700-1500) on Saturdays, to assist with call volume."

[175] That Consultation Paper states that the proposed roster includes: "Extension of the current weekday (Mon-Fri) 0900-1400 five (5) hour shift to a 0700-1500 eight (8) hour shift."

[176] The Consultation outcome document states that on 14 November 2024 a consultation document and proposed roster for Switchboard Services, Logan Hospital was released for consultation, and that affected staff, unions and stakeholders were invited to provide feedback by 8 December 2024.

[177] That document states that seventeen affected employees were invited to cast a vote, that seventeen votes were received, that fourteen "Yes" votes and three "No" votes were received, and that the proposed rosters were approved with a date effective of 20 January 2025.

[178] On 3 November 2025 Mr Heath Moran, Organiser, Together Queensland, sent an email to Ms Carolyn Jeffrey, Ms Patricia Conaghan and the Appellant which states: "Firstly, congratulations to you all on being endorsed to become workplace delegates!"

[179] The Appellant was endorsed as a workplace delegate on or about 3 November 2025.

[180] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that agreement under clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015 was obtained before the rostering of the Appellant's shifts on 17 and 18 March 2024.

[181] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that a ballot of affected employees was conducted before the change to after-hours on-call arrangements notified by Ms Taylor on 15 April 2024.

## 1(j) What the employer says of its own systems and records

**THE POSITION — [12]** That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces".

[263] By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training."

[264] That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard."

[265] That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants."

[266] That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested."

[267] That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant."

[268] That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024."

[269] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.

[270] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.

[271] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.

[272] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.

## STRESSOR 2 – THE PAY

### 2(a) The correction, and who could make it

**THE POSITION — [2]** That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week".

**THE POSITION — [13]** That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period".

[182] The Respondent's disclosure contains an email thread with the subject "Corey Shepherd 388372 Pay issues".

[183] The first message in that thread is dated 3 May 2024, is from PayrollMetroSouth, is addressed to Ms C Taylor, and is copied to the Appellant.

[184] That message bears the signature block of Elaine Grant, Client Service Officer, Metro South Payroll Team, Payroll Transactional Services.

[185] That message states: "Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is topping up the missing wages from his RDO balance."

[186] That message states: "This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775."

[187] That message states: "The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour."

[188] That message states: "Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime."

[189] That message states: "Fortnight 01.04.24 is the same, 0.95hrs over contracted 76hrs needs to be overtime."

[190] That message states: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended."

[191] The thread contains a message dated 10 May 2024 at 2:21 pm from the Appellant, addressed to PayrollMetroSouth and to Ms E Grant.

[192] The thread contains a message dated 13 May 2024 at 8:21 am from PayrollMetroSouth, addressed to the Appellant.

[193] That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay."

[194] The thread contains a message dated 21 May 2024 at 12:33 pm from Ms C Taylor, addressed to the Appellant, with the subject "RE: Corey Shepherd 388372 Pay issues".

[195] That message of 21 May 2024 states: "Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an AVAC for next pay run. I will let you know PRN once it has been submitted."

[196] The Respondent's disclosure contains a message dated 28 May 2024 at 8:36 am from Ms C Taylor, addressed to the Appellant and copied to Ms T Reese, with the subject "Validation of Claims older than 3 months - Please sign".

[197] That message of 28 May 2024 states: "Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval."

[198] The myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure records seven submissions for the Appellant in the period 1 February 2024 to 31 May 2024.

[199] That report records five of those seven submissions as an "Attendance Variation and Allowance Claim (AVAC)".

[200] That report records the initiator of each of those five Attendance Variation and Allowance Claims as "Donovan-Taylor, Chloe".

[201] That report records the initiator of no Attendance Variation and Allowance Claim in that period as the Appellant.

[202] That report records a submission with process number 16328886 as an Attendance Variation and Allowance Claim submitted on 15 May 2024, with a processing date of 16 May 2024, and a status of "Completed".

[203] That report records a submission with process number 16450619 as an Attendance Variation and Allowance Claim submitted on 28 May 2024, with an effective date of 30 March 2024, a processing date of 30 May 2024, and a status of "Part Completed".

[204] That report records the status of every other Attendance Variation and Allowance Claim in the period as "Completed".

[205] That report records the following process numbers with the following submission dates: 15325947, submitted 6 February 2024; 15480560, submitted 20 February 2024; 15848692, submitted 27 March 2024; 15849573, submitted 27 March 2024; 15969838, submitted 9 April 2024; 16328886, submitted 15 May 2024; and 16450619, submitted 28 May 2024.

[206] In that report, process numbers increase as submission dates increase.

[207] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 20(c): "any discrepancies or errors were remedied in a timely manner".

[208] That amended statement of facts and contentions states at paragraph 20(f): "there are no outstanding underpayments for the appellant".

[209] That amended statement of facts and contentions states at paragraph 21(c): "says Ms Taylor submitted the AVAC on 28 May 2024".

[210] Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in the myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure.

## STRESSOR 3 – THE ROSTER AND FATIGUE

### 3(a) The roster line, and what was written about it

**THE POSITION — [2]** That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week".

**THE POSITION — [13]** That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period".

[211] On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts.

[212] That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer".

[213] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor got in touch with the Appellant about alternative shifts following the meeting of 16 April 2024.

[214] On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Re: Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act."

[215] That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback".

[216] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor reviewed the toolkit referred to in that email, or provided any feedback on it, at any time before 18 June 2024.

[217] On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response."

[218] On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue."

[219] That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run thought this and we say at best there would be a rating of 11 which is moderate".

[220] That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters".

[221] That email of Ms Reese to Mr Mackenzie Pritchard of 10 May 2024 states: "Cory's roster will not be considered, however Cory is not yet aware of this as we cannot advise what is the roster we are planning on going with before we send out the implementation plan for this business case for change".

[222] On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH\_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great."

[223] That email of Ms Reese to LBH\_HR attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline.

### 3(b) The shifts of 17 and 18 March 2024, and the agreement of 17 June 2020

[17] The Appellant signed an agreement allowing an 8-hour break between shifts on 17 June 2020.

[18] Review Decision 69983 of the Workers' Compensation Regulator, dated 24 October 2024, records the Appellant's submission that the 8-hour agreement "was no longer fit for purpose since your transition from casual employment to full-time".

[19] That decision records the Appellant's submission that "since your commencement, you have signed new terms and working arrangements as a full-time employee".

[20] That decision records the employer's confirmation that there had been a "change to your employment contract and adjustments in your working hours" since 17 June 2020.

[21] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the 8-hour agreement of 17 June 2020 was reviewed, re-executed or re-confirmed at any time between 17 June 2020 and 18 March 2024.

[22] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 1 May 2024, that the 8-hour agreement of 17 June 2020 could be terminated by him.

[23] Review Decision 69983 records that Ms Sandra Johnstone was the Switchboard Line Manager as at 8 December 2021.

[24] That decision records that Ms Danielle Cook was the "previous Switchboard Manager", and that "Ms Taylor was subsequently appointed to the Switchboard Manager role".

[25] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was the Switchboard Manager on 17 June 2020.

[224] By email dated 7 July 2026 Ms Lyndelle Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, wrote to the Appellant stating that the rostering "currently provides more than 10-hour breaks between shifts".

[225] That email states: "acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred."

[226] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 22(a): "says the shift was separated by only a 7-hour break (rather than an 8-hour break) says that this was a result of human error and not intentional or repeated".

[227] The shift commencing at 06:00 on 18 March 2024 fell on a Monday.

[228] A register titled "2024 Emergency Code Register" records, for 17 March 2024, eight entries, including "MET CALL WARD 2H BED 7" at 19:16; "CODE BLUE WARD 2H BED 7" at 19:20 and "MET CALL WARD 2Q BED 5" at 21:16.

[229] That register records, for 18 March 2024: "CODE GREY QAS TRIAGE AIRLOCK" at 8:48; "MET CALL WARD 6A BED 8" at 9:20; "MET CALL WARD 3DR BED 14" at 11:31; "CANCELLED MET CALL WARD 3DR BED 14" at 11:32; "NEONATAL MET CALL THEATRE 2" at 11:35; and "NEONATAL MET CALL BIRTH SUITES 5" at 13:09.

[230] Six of the entries recorded in that register for 18 March 2024 bear times between 6:00 and 14:00.

[231] That register records, for 19 March 2024 at 11:34, "MET CALL WARD 2I BED 20" with the notation "CALLED VIA SWITCHBOARD" [sic].

*[TO BE ADMITTED — the four paragraphs above are the 2024 Emergency Code Register, a Metro South Hospital and Health Service workbook kept at Logan Hospital Switchboard and produced at Tab 31. They were not admitted on 8 September 2026 and no reason was given; the authenticity of Tab 31 is disputed on the Form 25 while the contents of the other tabs are admitted. Metro South Health has stated in writing that "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024" (admitted, paragraph 268 at 1(j) above). The Respondent was asked to produce it on 9 September 2026 and replied on 10 September 2026 seeking until 25 September 2026.]*

[232] That amended statement of facts and contentions states at paragraph 22(e): "says in June 2020, the Appellant signed an agreement allowing an 8-hour break between shifts".

[233] That amended statement of facts and contentions states at paragraph 22(b): "says that the appellant could refuse shifts at anytime".

[234] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the consecutive shifts of 17 and 18 March 2024 arose from a staff initiated shift swap.

[235] The Leave Takings Report produced by Metro South Hospital and Health Service in respect of 19 March 2024 records the Leave Category as "Sick", the Leave Type as "Sick Leave", the Time Code as "SCK", the Leave Taken as 7.60 hours, and the Leave Status as "APPROVED".

[236] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 24(a): "says that the appellant took leave on 19 March 2024 but says this was paid leave".

[237] That amended statement of facts and contentions states at paragraph 24(b): "says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing overtime".

[238] That amended statement of facts and contentions states at paragraph 27: "The respondent contends that any management action involved in the causation of any injury to the Plaintiff [sic] was reasonable management action taken in a reasonable way pursuant to s 32(5) WCRA."

[239] Review Decision 69983 records that the policy regarding fatigue leave following weekends and rostered days off is dated June 2020.

[240] That decision records: "The policy notes that many problems can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day and not rostering on call an officer who is rostered for the first shift on the following day."

[241] That decision records that section 23 of the Hospital and Health Service General Employees (Queensland Health) Award provides that "where an employee is in receipt of the additional week's leave as prescribed in clause 19.2(a) and is rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day, such employee shall be paid an additional day's wage or be granted a day's holiday in lieu at a time to be mutually arranged, but this is not applicable where an employee is not ordinarily required to work on a Saturday or Sunday".

### 3(c) The request of 8 April 2024, the delay, and the refusal of 1 May 2024

[242] Review Decision 69983 records: "You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024."

[243] That decision records that in that email the Appellant "noted the Hospital and Health Service General Employees (Queensland Health) Award stipulated in part 5 section 15 that unless there was a mutual agreement of regular rosters, employees were entitled to a minimum 10-hour break".

[244] That decision records that Ms Taylor replied on 9 April 2024 and "added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this".

[245] That decision records that in the same reply Ms Taylor "proceeded to acknowledge the importance of communication and requested that you raise your concerns with her as soon as they arise so she could action them sooner for you".

[246] That decision records that on 24 April 2024 the Appellant emailed Ms Taylor and "expressed your dissatisfaction with the process and that it had been more than 2 weeks without any response or overtime payment".

[247] That decision records: "Ms Taylor responded to your email on 1 May 2024 via email and stated that after a consultation with payroll and Human Resources, your request for fatigue payment for 18 March 2024 would not be processed due to the existing 8-hour agreement signed by you on 17 June 2020."

[248] That decision records, of the same email of 1 May 2024: "However, she noted you are able to terminate this agreement going forward."

[249] The period between the Appellant's email of 8 April 2024 and Ms Taylor's response of 1 May 2024 is 23 days.

[250] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the Appellant's enquiry regarding fatigue leave at any time between 9 April 2024 and 1 May 2024.

[251] Review Decision 69983 records the Appellant's response of 9 August 2024 as stating that the break between the shifts of 17 and 18 March 2024 "did not include travel time", and: "If you factored in travel time, your break between shifts would have been less than 5 hours."

[252] That decision records the employer's response of 6 September 2024 as confirming "you did not formally rescind the 8-hour agreement signed by you on 17 June 2020 and the change to your employment contract and adjustments in your working hours did not automatically invalidate the agreement".

[253] That decision records: "The employer did not mention your shift on 18 March 2024."

[254] That decision states: "In considering the evidence, I find there was uncertainty between you and the employer regarding whether the 8-hour agreement continued to apply."

[255] That decision records that payroll was, as at 1 May 2024, "still reviewing your entitlements regarding public holidays not required arising while you were a part-time employee".

[256] That decision records Ms Taylor as confirming "that since your commencement of full-time employment, all payments for public holidays not required had been processed".

### **3(d) The Respondent's own review decision of 24 October 2024**

[257] Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances".

[258] That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours."

[259] That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break."

[260] That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement."

[261] That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature".

[262] That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor".

## **THE RECORD, AND WHAT THE RESPONDENT DOES NOT ALLEGE**

### **4(a) What was provided, and what the Respondent lists**

[274] The Respondent's amended List of Documents dated 14 August 2026 lists at item 12 an email from the Appellant to WorkCover Queensland dated 12 July 2024 with the attachment described as "Event overview - undated".

[275] That amended List of Documents lists at item 14 an email from the Appellant to WorkCover Queensland dated 18 July 2024 with the attachment described as "Witness statement - Carolyn Jeffrey".

[276] That amended List of Documents lists at item 16 an email from Ms Carolyn Jeffrey to WorkCover Queensland dated 1 August 2024 described as a follow up statement.

[277] That amended List of Documents lists at item 25 an email from the Appellant to WorkCover Queensland dated 29 August 2024 described as regarding the after hours on call change, with the attachment described as "Email: After hours on call process".

[278] That amended List of Documents lists at item 26 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: Task change switchboard - 19/04/2024".

[279] That amended List of Documents lists at item 27 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: MASPER process - 09/05/2024".

[280] The Appellant provided the document described at item 12 to WorkCover Queensland on 12 July 2024.

[281] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 11: "The respondent does not admit the allegations in stressor 1(a) of the appellants statement, because there are no particulars or details to respond to."

[282] On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) of the Amended Form 9A and enclosing the documents recording it.

### **4(b) Facts already admitted in this proceeding on 18 February 2026**

[283] On 18 February 2026 the Respondent, by Ms Renee Matheson, Senior Appeals Officer, signed and served on the Appellant a response to the Appellant's notice to admit facts in this proceeding.

[284] In that response the Respondent admitted paragraph 1 of that notice, being: "On 17-18 March 2024, the Appellant was rostered to finish work at 23:00 and commence his next shift at 06:00, resulting in a break of only 7 hours."

[285] In that response the Respondent admitted paragraph 3 of that notice, being: "The Employer's 'Fatigue Risk Management Policy' and the relevant Award require a minimum break of 10 hours between shifts, or 8 hours by written agreement."

[286] In that response the Respondent denied paragraph 4 of that notice, on the stated ground: "because in June 2020, the Appellant signed an agreement allowing an 8 hour break between shifts".

[287] In that response the Respondent admitted paragraph 5 of that notice, being that Ms Reese stated in an email dated 7 August 2023: "I do realise in this instance there was a rostering error that was accidentally made by Chloe with regards to night shifts".

[288] In that response the Respondent admitted "that Ms Taylor removed a page from the workplace communications book", and did not admit that the page contained the Appellant's handwriting "because the respondent does not have a copy of the page".

[289] In that response the Respondent admitted paragraph 8 of that notice, being: "Maintaining accurate contact details for medical staff is a critical function of the Switchboard to ensure effective clinical handover and patient safety."

[290] In admitting that paragraph the Respondent added: "and says that there was a procedure in place for this to occur".

[291] In that response the Respondent denied paragraph 9 of that notice on the stated ground: "because there was already a procedure in place".

[292] In that response the Respondent admitted paragraph 14 of that notice, being that in an email to Ms Reese dated 6 June 2023 Ms Taylor stated: "I did raise my voice and asked him to please stop talking over the top of me."

[293] In that response the Respondent admitted that the Union Encouragement Policy QH-POL-248 "says words to that effect", the effect pleaded being that the Policy "requires managers to take a 'positive, supportive role' to facilitate union membership and delegate elections".

[294] In that response the Respondent admitted "that the Appellant sent a text to Ms Taylor at 5.03pm that he was 'just putting his hand up'", and said that this was not a formal notification.

[295] In that response the Respondent admitted "the contents of the Respondent's review unit decision", and said that this fact is not relevant because the appeal is a hearing de novo.

[296] In that response the Respondent admitted paragraph 40 of that notice, being the instruction of Ms E Grant of Payroll of 3 May 2024.

[297] In that response the Respondent admitted "the fact that Ms Taylor submitted the AVAC on 28 May 2024".

[298] In that response the Respondent admitted paragraph 46 of that notice, being the email of Ms Taylor of 21 May 2024 stating that she was waiting for payroll confirmation and would submit an AVAC for the next pay run.

[299] In that response the Respondent admitted paragraph 20 of that notice, being: "On 24 December 2024, the Ethical Standards Unit (ESU) determined that the Appellant's complaint regarding Ms. Taylor and Ms. Reese constituted a Public Interest Disclosure (PID)".

[300] In that response the Respondent admitted paragraph 21 of that notice, being: "On 15 May 2024 (48 hours after the Appellant lodged the PID complaint), Director Tammy Reese sent an email directing the Appellant to 'retract' an email he had sent inquiring about office hours".

[301] In admitting paragraph 21 the Respondent said "there was no correlation between the two events", and said further that "Ms Reese also emailed the Appellant about retracting the email on 21 May 2024 and all of the emails need to be read as a whole to determine the meaning and context".

[302] In that response the Respondent denied paragraph 22 of that notice - being that on 9 May 2024 Ms Taylor sent a substantively similar email regarding another staff member's hours, for which she was not directed to issue a retraction - on the stated grounds: "because the circumstances were different and did not require Ms Taylor to retract her email".

[303] In that response the Respondent denied paragraph 19 of that notice - being that management failed to facilitate a vote or provide necessary delegate information for a period exceeding 9 months after his initial request - on the stated grounds: "the Appellant did not request assistance", "Ms Taylor did provide advice and support to the Appellant", and "the Appellant was provided with delegate information".

[304] In that response the Respondent denied paragraphs 42 to 45 of that notice on the stated grounds: "because the comparator used does not represent a true comparator in the circumstances and because the roster was equitable".

#### **4(c) Matters the Respondent does not allege**

[305] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was subject to any disciplinary process at any time before 18 June 2024.

[306] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant's work performance was the subject of any formal performance management process at any time before 18 June 2024.

[307] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not describe any communication with the Appellant before 18 June 2024 as a warning, or as part of a disciplinary or performance management process.

[308] Paragraph 27 of the Respondent's amended statement of facts and contentions dated 13 May 2026 does not identify, by particular, date, document or cross-reference, the management action relied upon for the contention in that paragraph.